

Regarding application of Retirement Pension and Death-cum-Retirement Gratuity Scheme to the employees in the office of District Disability Rehabilitation Centre, Virar, District Palghar..

GOVERNMENT OF MAHARASHTRA

Department of Persons with Disabilities Welfare

Government Resolution No.: Divyang-2023/C.R. 08/Di. C. 04

3rd Floor, A-Wing, Mittal Tower,
Nariman Point, Mantralaya, Mumbai-400 021
Date:- 05 March, 2024.

Read:-

1. Social Welfare Ministry, Government of India D.O. Letter No. 15-1/B-4-HW-III, Dated 11.2.1985.
2. Central Government, Ministry of Social Justice and Empowerment, Government of India, New Delhi's Letter No. DRC/ACCTS/STATE DRCs/2004, Dated 22.12.2005.
3. Government Resolution, Social Justice and Special Assistance Department No.: Apang-2006/C.R.4 / Sudhar-3, Dated 12 July, 2007.
4. Commissioner, Disability Welfare Commissionerate, Pune's Letter No. Aastha/Jiapuke Virar/Bhanini/2010/3594, Dated 27 September, 2010.
5. Commissioner, Disability Welfare Commissionerate, Pune's Letter No. Aastha/MAT/Order/Jidupuke/Virar/2022-23/1979/Pune, Dated 1/9/2022.
6. Minutes of the meeting held under the chairmanship of Hon. Chief Secretary on Date 19.12.2022.
7. Decision taken in the Cabinet Meeting held on Date 10.01.2024.

Preamble:-

District Disability Rehabilitation Centre, Virar was started in the year 1983 at Primary Health Centre, Virar, Dist. Thane, through All India Institute of Physical Medicine and Rehabilitation, Mumbai under the Rural Rehabilitation Project Scheme of the Central Government. Considering the utility of the said center, the Central Government launched the District Rehabilitation Centre scheme in 1985. Under this scheme, the jurisdiction of District Disability Rehabilitation Centre, Virar was extended to the entire state for supplying artificial limbs. Since this program was on an experimental basis, 100% funds for this scheme were being made available by the Central Government. Persons with disabilities have benefited from various facilities through the Disability Rehabilitation Centre. After the project period was complete, since the said program was to be transferred to the concerned State Government, instructions were issued vide Central Government's letter dated 18.08.1987 that rules regarding pay scale, allowances, service conditions, pension, provident fund, gratuity, etc., to the employees appointed under this program will remain applicable as per the State Government and appropriate action should be taken accordingly.

Vide Central Government's letter dated 22.12.2005, it was decided to close the District Rehabilitation Centre scheme from 1st April, 2006 and no financial provision was made by the Central Government for this scheme. Also, it was communicated that the State Government should take over the District Disability Rehabilitation Centre, Virar, or action should be taken to close the Centre prior to 31.3.2006.

Taking into consideration the utility of District Disability Rehabilitation Centre, Virar, as per Government Resolution dated 12 July, 2007, the District Rehabilitation Centre along with its employees was taken over from 1st April, 2006. After taking over the District Rehabilitation Centre, pay fixation of the employees was done as per Maharashtra Civil Services (Revised Pay) Rules, 1998, and all service rules/conditions as applicable to State Government employees were made applicable to these employees, providing them service-related benefits.

The selection of officers / employees in the District Disability Rehabilitation Centre was done by the Central Government during the period 1983-1990, and their honorarium / salary was being paid by the Central Government. Since their salary was not being paid from the State Government funds, they did not receive a Provident Fund number. As per the Central Government's letter dated 29.3.2000, the C.P.F. scheme was applied to employees with retrospective effect and employee and government contributions to C.P.F. were deposited. However, since C.P.F. numbers were not received, the contribution collected up to July, 2006 was deposited in State Bank of India, Virar branch.

Appointments of employees in the Rehabilitation Centre took place from 1983-84, but since no pension-related scheme was applicable to them, the services of the employees have been continued as per decisions given in petitions filed by employees before the Central Administrative Tribunal, High Court, and Supreme Court. In Original Application No. 498/2015 filed in Maharashtra Administrative Tribunal, Mumbai for getting retirement pension benefits to employees in the Disability Rehabilitation Centre, the Hon. Tribunal ordered to take a decision within six months. Considering the long service rendered by these employees in the field of disability welfare, it would not be proper to deprive them of post-retirement benefits due to them. Therefore, the matter of taking a policy decision regarding sanctioning pensionary and retirement gratuity benefits admissible under Maharashtra Civil Services (Pension) Rules, 1982, Maharashtra Civil Services (Commutation of Pension) Rules, 1984, and General Provident Fund Scheme along with all provisions therein and modifications made from time to time was under consideration of the Government.

Government Resolution:-

Out of a total of 24 employees of the Rehabilitation Centre who were working prior to 01.11.2005 at District Disability Rehabilitation Centre, Virar, Dist. Palghar and taken over by the State Government as per Government Resolution dated 12.07.2007, excluding 1 employee who resigned, approval is hereby granted to apply the retirement pension

and gratuity scheme admissible under Maharashtra Civil Services (Pension) Rules, 1982, Maharashtra Civil Services (Commutation of Pension) Rules, 1984, and General Provident Fund Scheme along with all provisions therein and modifications made from time to time to the remaining 23 employees. While applying the said scheme, decisions have been taken as follows:-

- I. To the employees appointed prior to 01.11.2005 in the organization District Disability Rehabilitation Centre, Virar, Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil Services (Commutation of Pension) Rules, 1984 should be made applicable from the date of their original appointment.
- II. If the old pension scheme is made applicable to the employees of District Disability Rehabilitation Centre, Virar, the CPF amount deposited by the employees shall be refunded to the concerned employees along with accrued interest. Also, the CPF amount deposited by the Central Government shall be credited to the State Government's account along with the interest amount.
- III. The amount of retirement death-cum-gratuity payable by the Government as well as the pension amount should be paid to retired employees in three installments.
- IV. The amount of service gratuity (Gratuity) to the employees of the District Rehabilitation Centre should be paid from the date 1.4.2006 when taken over by the State Government.

2. This Government Resolution is available on the website of Government of Maharashtra www.maharashtra.gov.in and its computer code is 202403051650199235. This order is issued being authenticated by digital signature.

By order and in the name of the Governor of Maharashtra,

ADHIKRAO BAPU BUDHE

Digitally signed by ADHIKRAO BAPU BUDHE

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(Adhikrao Ba. Budhe)

Under Secretary, Government of Maharashtra

Copy to:

- Hon. Principal Secretary to Chief Minister, Mantralaya, Mumbai
- Hon. Principal Secretary to Deputy Chief Minister, Mantralaya, Mumbai
- Deputy Secretary to Chief Secretary, Mantralaya, Mumbai
- Additional Chief Secretary, Finance Department, Mantralaya, Mumbai
- Commissioner, Disability Welfare Commissionerate, Pune
- Accountant General (A&E / Audit) Maharashtra State 1/2 Mumbai / Nagpur
- Pay and Accounts Officer, Mumbai
- Resident Audit Officer, Mumbai
- District Treasury Officer, Palghar/Thane

- District Social Welfare Officer, Zilla Parishad, Palghar/Thane.
- District Rehabilitation Officer, Rehabilitation Centre, Virar, Dist. Palghar
- Finance Department (Exp-14), Mantralaya, Mumbai
- Desk Officer, Disability Welfare Department (Di. C. 2), Mantralaya, Mumbai
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